



United States
Attorney's Office
Southern District of Texas



Nearly 50 charged in Southern District of Texas as part of national health care fraud takedown

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For Immediate Release

U.S. Attorney's Office, Southern District of Texas

Combined efforts have resulted in charges against 18 medical professionals after nearly 12 million pills distributed and over \$360 million fraudulently billed to Medicare

HOUSTON – A total of 22 cases are being announced as part of local efforts targeting health care fraud and include various schemes alleging unlawful distribution of controlled substances, some of which were diverted onto the black market, hospice fraud, kickbacks and other Medicare/Medicaid fraud schemes involving medically unnecessary genetic tests, durable medical equipment and more.

The charges filed in Southern District of Texas (SDTX) federal court are part of the Department of Justice's 2025 national health care fraud takedown.

“Americans rely on Medicare for needed treatments and living-saving care. Those that bilk this fund to unlawfully enrich themselves are ultimately stealing from the taxpayer and damaging public confidence in our health system,” said U.S. Attorney Nicholas J. Ganjei. “Today’s takedown is a reminder to would-be medical fraudsters that the Department of Justice is always standing guard over the public fisc.”

“This record-setting health care fraud takedown delivers justice to criminal actors who prey upon our most vulnerable citizens and steal from hardworking American taxpayers,” said Attorney General Pamela

Bondi. "Make no mistake – this administration will not tolerate criminals who line their pockets with taxpayer dollars while endangering the health and safety of our communities."

One of the largest cases include three individuals for their alleged roles in a \$110 million hospice fraud and kickback scheme. The charges allege Dera Ogudo, 39, and Victoria Martinez, 35, both of Richmond, operated hospice company United Palliative & Hospice Company (UPHC) that misled vulnerable elderly adults about what services were being billed to their Medicare and Medicaid plans. According to court documents, UPHC Medicare and Medicaid beneficiaries and/or their family members believed they would be receiving palliative or home health services. In truth, these patients were enrolled in hospice services but were not actually terminally ill as Medicare and Medicaid requires, according to the charges. Ogudo allegedly paid kickbacks to several group homeowners in exchange for enrolling their beneficiaries in hospice with UPHC and bribed a physician to certify and re-certify UPHC patients as terminally ill when they were not. Ogudo also allegedly paid kickbacks to Evelyn Shaw, 52, Houston, in exchange for referrals from a local psychiatric hospital where Shaw was employed as discharge coordinator.

In relation to the scheme, Carlos Munoz, 57, Richmond, is charged by information. Ogudo allegedly paid Munoz, a medical doctor, kickbacks and bribes to certify and re-certify Medicare and Medicaid patients for hospices services.

In a separate case, Keilan Peterson aka Young Jay or Jay, 38, and Kimberly Martinez, 47, Houston, have been charged for their alleged participation in a scheme to unlawfully distribute and dispense controlled substances in exchange for cash through Relief Medical Center and GroveCare clinics in Houston. As alleged in their indictment, Peterson paid three doctors to allow Peterson, Martinez and others at the clinics to use the doctors' electronic prescribing credentials to issue prescriptions for significant amounts of hydrocodone, carisoprodol and oxycodone. Peterson also allegedly sent some of these illegitimate prescriptions to his own pharmacy, Next Level Pharmacy, and took possession of the controlled substances to sell on the black market. In total, the indictment alleges Peterson and others issued over 2 million controlled substance pills, the vast majority of which were unauthorized, issued without a legitimate medical purpose and outside the usual course of professional practice.

A podiatrist and the self-proclaimed CEO of a local medical clinic were also charged in another \$90 million Medicare fraud scheme. The 15-count superseding indictment alleges David Jenson, 57, and Nestor Rafael Romero Magallanes, 29, both of Spring, conspired to fraudulently bill Medicare for over \$90 million for skin substitute products—often for patients who did not have qualifying wounds. They allegedly submitted claims for patients who did not have qualifying wounds, or any wounds at all, and continued billing even after a 2023 audit denied all their claims and flagged the conduct as improper. The indictment further alleges Jenson and Romero falsified medical records to make it appear patients had chronic wounds and manipulated documentation to show those wounds were improving despite no such existing conditions.

Charged with wire fraud, Tyneza P. Mitchell, 43, Spring, was allegedly involved in a scheme to bill the COVID-19 Claims Reimbursement to Health Care Providers and Facilities for Testing, Treatment and Vaccine Administration for the Uninsured Program. The charges allege billing included in-office

consultations regarding COVID diagnosis and treatment she never provided. As alleged in the indictment, Mitchell is a licensed nurse practitioner who received \$9.9 million as a result of her fraudulent scheme.

Daphne Johnson, 60, Stafford, was allegedly involved in a scheme to bill Medicaid \$793,804 for mental health therapy services she never provided. As alleged in the information, Johnson received \$331,112 as a result of her fraudulent scheme.

Prosecutors with the Department of Justice's Health Care Fraud Strike Force also filed charges against several more individuals in this district with assistance from SDTX.

Chad Harper, 49, Pearland, is facing numerous charges in connection with a \$115 Medicare fraud scheme. As alleged in the indictment, Harper owned multiple laboratories through which he billed Medicare for genetic and other diagnostic testing induced by kickbacks and bribes which were medically unnecessary or otherwise ineligible for Medicare. The indictment alleges Harper generated business through a nationwide network of marketers who directed referrals to the laboratories in exchange for illegal kickbacks that Harper paid through shell companies. Harper allegedly funded his operation through, among other ways, obtaining a fraudulent equipment loan from a local credit union. Harper allegedly laundered the proceeds of his schemes through other shell companies, which purchased and held real properties and assets and passed profits on to Harper.

Dr. Maryam "Meg" Qayum, 67, New Caney, is charged with multiple counts of illegally distributing a controlled substance along with Jared Williams, 48, Pearland; and Tomi-Ko Bowers, 70, Lester "Lay" Stokes, 37, and Melvin Sampson, 55, all of Houston. The charges stem from their alleged roles in diverting more than three million opioids onto the black market. As alleged in the indictment, Qayum is a medical doctor and Bowers an advanced practice registered nurse who operated Recare Clinic in Kingwood along with Stokes. They allegedly sold oxycodone and hydrocodone prescriptions to drug traffickers in exchange for cash. Sampson is alleged to be one such individual who recruited others to pose as patients, paid cash for the prescriptions from Qayum, filled Qayum's prescriptions at complicit pharmacies and resold the drugs on the black market.

Other Strike Force cases include one charging Sacha Lashun Betts, 47, Houston, and Nicholas Aguiard, 49, Rosenberg; Lisa Darlene Durden, 60, and Jordan O. Williams, 56, both of Missouri City; Quincy Guillory, 51, Richmond; Mykel Walker, 42, Cypress, and Kaeita Rankin, 48, Houston. The indictment alleges they participated in a conspiracy to distribute and dispense controlled substances in connection with the establishment, oversight and operation of a drug trafficking organization that controlled more than a dozen "front" pharmacies used to sell opioids and other commonly abused prescription drugs, often in bulk, to street-level drug dealers on Houston's black market. From 2015 through 2022, the defendants' pharmacies unlawfully distributed and dispensed more than 4.4 million doses of opioids and other commonly abused prescription drugs, with an estimated street value exceeding \$75 million, according to the charges. The co-conspirators allegedly sold opioids and other commonly abused prescription drugs to street-level drug traffickers in exchange for cash.

Other cases involve fraudulent schemes for kickbacks or billing Medicare for medically unnecessary genetic tests or footbath drugs, durable medical equipment, conspiracies to unlawfully distribute and dispense controlled substances, some involving diversion onto the black market or in connection to the operation of pill-mill pharmacies. Those charged in this district also include residents of Houston, Richmond, League City, Rosharon, Sugar Land, Katy, Pearland and Manvel as well as U.S. citizens from Florida, Indiana and Georgia.

All the cases are part of a strategically coordinated, nationwide law enforcement action that resulted in criminal charges against 324 defendants for their alleged participation in health care fraud and illegal drug diversion schemes that involved the submission of over \$14.6 billion in intended loss and over 15 million pills of illegally diverted controlled substances. The defendants allegedly defrauded programs entrusted for the care of the elderly and disabled to line their own pockets. The United States has seized over \$245 million in cash, luxury vehicles and other assets in connection with the takedown.

Descriptions of each SDTX case and others involved in the enforcement actions are available on the Department of Justice's [website](#).

Department of Health and Human Services - Office of Inspector General (OIG), FBI, Drug Enforcement Administration, Texas Attorney General's Medicaid Fraud Control Unit, Federal Housing Finance Agency – OIG and U.S. Postal Service - OIG conducted the various investigations with assistance of police departments in Conroe, Dickinson and Houston. Assistant U.S. Attorneys (AUSA) Brad Gray, Kathryn Olson, Christine Lu, Alexander Alum and Thomas Carter are prosecuting the SDTX cases with assistance from AUSAs Kristine Rollinson and Brandon Fyffe who are handling forfeiture matters. Counsel to the Chief of the Health Care Fraud Unit Alexis Gregorian, Acting Assistant Chief Devon Helfmeyer, Senior Litigation Counsel Catherine Wagner and Trial Attorneys Adam Tisdall, Andrew Tamayo, Monica Cooper, Benjamin Smith, Yael Mash, Erika V. Suhr, Ethan Womble, Claire Horrell and Gary A. Crosby are prosecuting the Strike Force matters.

SDTX and The Health Care Fraud Unit's Rapid Response, Texas, Florida, Gulf Coast, Los Angeles, Midwest, New England and Northeast Strike Forces are prosecuting the cases as well as U.S. Attorneys' Offices for the Districts of Columbia, Arizona, Connecticut, Delaware, Idaho, Maine, Michigan, Montana, Nevada, New Hampshire, New Jersey, North Dakota, Oregon, South Carolina, Vermont; Northern and Western Districts of Texas; Central, Northern and Southern Districts of California; Middle, Northern and Southern Districts of Florida; Middle District of Georgia; Northern District of Illinois; Eastern and Western Districts of Kentucky; Eastern and Middle Districts of Louisiana; Eastern District of Michigan; Northern and Southern Districts of Mississippi; Eastern, Northern, Southern and Western Districts of New York; Eastern and Western Districts of North Carolina; Northern and Southern Districts of Ohio; Northern and Western Districts of Oklahoma; Eastern District of Pennsylvania; Middle and Western Districts of Tennessee; Eastern District of Virginia; Western District of Washington; Northern District of West Virginia; and State Attorney Generals' Offices for Arizona, California, Georgia, Illinois, Indiana, Louisiana, Massachusetts, Missouri, New York, Ohio and Pennsylvania with assistance from the Health Care Fraud Unit's Data Analytics Team.

***A complaint, information or indictment is a formal accusation of criminal conduct, not evidence.
A defendant is presumed innocent unless convicted through due process of law.***

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